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Tentative Ruling

Margarita Franco v. Lawrence Bender, Case No. 25SMCV02184

Lawrence Bender' s Motion to Exclude or Limit Testimony of Plaintiff's Supplemental Experts

Hearing Date: September 10, 2026

Background

On April 28, 2026, Plaintiff Margarita Franco ("Franco") sued Defendant Lawrence Bender ("Bender") for motor vehicle negligence arising from a car accident on October 17, 2023, on Montana Avenue and 12th Street in Santa Monica, California.

On November 11, 2025, the parties attended an IDC and resolved a dispute regarding supplemental responses to Franco's interrogatories and requests for production.

On July 31, 2026, Bender filed this Motion to Exclude or Limit Testimony of Plaintiff's Supplemental Retained Experts. On August 3, 2026, the Court advanced the hearing on that motion to September 10, 2026. On August 27, 2026, Franco filed Opposition. On August 31, 2026, Bender filed a reply.

Jury Trial is set for November 30, 2026.

Bender seeks to exclude Franco's supplemental expert's liability testimony beyond the subjects disclosed by Bender's retained expert. Dr. Gardiner is a biomechanical engineer and Dr. Gish is an accident reconstructionist. Bender contends that both experts are case-in-chief experts, not rebuttal experts, because they will testify on central elements of Franco's case-in-chief. Bender also contends that the experts' declarations exceed the scope of the evidence Defendants' expert offers and that their testimony would be impermissibly cumulative.

In opposition, Franco argues that Bender's motion should be denied because she complied with the express language of the expert designation statute and because the additional experts will testify on the same topics as Defendants' expert. Franco argues that any breadth issues should be resolved at the motion in limine phase and that there has been no prejudice to Bender.

In reply, Bender argues that the supplemental expert statute does not allow a party to hold back experts on matters in knew or reasonably should have known would be contested. Bender argues that accident reconstruction and biomechanics were reasonably foreseeable areas of expert testimony, so Franco should not be permitted to add experts late. Bender argues that it would be prejudiced because it will have to schedule and take additional expert depositions before trial.

Governing Law- Expert Disclosure

“Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any natural person, including one who is a party, whose oral or

deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial.” (Code Civ. Proc., § 2034.210, subd. (b).) The exchange of expert witness information shall include either of the following: (1) a list setting forth the name and address of a person whose expert opinion that party expects to offer in evidence at the trial, or (2) a statement that the party does not presently intend to offer the testimony of an expert witness. (Code Civ. Proc., § 2034.260, subd. (b).) On objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (1) list that witness as an expert under Section 2034.260; (2) submit an expert witness declaration; (3) produce reports and writings of expert witnesses under Section 2034.270; or make that expert available for a deposition. (Code Civ. Proc., § 2034.300.)

CCP § 2034.230 states “(b) The demand shall specify the date for the exchange of lists of expert trial witnesses, expert witness declarations, and any demanded production of writings. The specified date of exchange shall be 50 days before the initial trial date, or 20 days after service of the demand, whichever is closer to the trial date, unless the court, on motion and a showing of good cause, orders an earlier or later date of exchange.”

Discussion

The central issue in this motion is whether the designation of Dr. Gardiner and Dr. Gish constitutes a permissible supplemental designation under CCP § 2034.280. Franco argues that Dr. Gardiner and Dr. Gish will rebut Bryan Randles’ accident reconstruction and biomechanics testimony for Bender.

Franco cites *Du-All Safety, LLC v. Superior Ct.*, 34 Cal.App.5th 485 (“*Du-All*”), for the position that a party has the right to supplement its expert witness exchange by adding experts to cover subjects on which the other party indicates it plans to offer expert testimony, and on which the opposing party had not previously retained an expert to testify. In *Du-All*, the Court of Appeal held that “There is no dispute that *Du-All* timely and simultaneously designated its initial experts. And also no dispute it timely designated its rebuttal experts in the same fields as plaintiffs’ initially designated experts. In short, *Du-All* complied with the express language of the expert designation statutes. That ends it.” (*Du-All*, supra, 34 Cal.App.4th at p. 497.)

Here, like in *Du-All*, there is no contention that Franco failed to comply with the statutory requirements of § 2034, either in her initial disclosure or in her supplemental disclosure.¹ Franco’s experts are qualified in the areas that Bender indicated Bryan Randles’ testimony would cover, nor has Bender shown any gamesmanship or prejudice. If the parties believe they need additional time to depose the experts, they may stipulate to continue trial or file a motion for a

continuance. Any issues as to the scope of Dr. Gardiner and Dr. Gish’s testimony are better addressed at the motion in limine phase.

Conclusion

Bender's Motion to Exclude or Limit Testimony of Plaintiff's Supplemental Experts is DENIED.